**THE STATE**

**VS**

**PERFECT NYATHI**

**AND**

**NTABISO NCUBE**

IN THE HIGH COURT OF ZIMBABWE

NDLOVU J

GWERU 06 FEBRUARY 2025 & 25 JUNE 2026

**Criminal trial - *Ex tempore* judgment**

*L. Ndlovu***,** for the state

*B.N Sansole,* for the 1st accused

*T.Khomboni,* for the 2nd accused

**NDLOVU J.** The two accused persons are charged with the offence of murder as defined in Section 47 Sub-section 1 of the Criminal Law Codification and Reform Act Chapter 9:23. The State alleges as follows that on the 3rd of June 2021 and at Bernard Dube's homestead Chief Bhuningi Lower Gweru in the Midlands Province the accused persons one or more of them unlawfully caused the death of Bernard Dube by shooting him with a sarsilmaz pistol several times on the stomach and thigh intending to kill him or realizing that there was a real risk or possibility that their conduct may cause death of the now deceased person but continued to engage in that conduct despite their appreciation of that risk or possibility.

**PLEAS**

The two accused persons pleaded not guilty to the charges.

**STATE CASE SUMMARY**

The summary of the State's allegations is as follows: on the day in question, the two accused persons, in the company of the three accomplices who are still at large, proceeded to the deceased's homestead in the evening around 1943 hours. One of them entered the house where the deceased was with his wife and a nephew, while the other accomplices remained

outside. Whilst inside, the assailant demanded to see the now deceased privately and immediately pulled out a pistol from his trousers' pocket, pointed it at the now deceased, and ordered everyone to sit down. The wife of the deceased picked up a brick and struck one of the assailants on the chest, causing the assailant to run out of the house holding a pistol. Whilst outside, the assailants shot at the deceased several times on his abdomen and right thigh. They went away for a while, they returned shortly thereafter, and started shooting, randomly breaking windows and walls before leaving the scene.

A report was quickly made to the police. The police attended to the scene. On their way to the scene, the Police arrested the accused person number 1. He was near the scene of the crime and was driving a car without number plates. A search was conducted in accused number 1's car, and a pistol holster was recovered in the dashboard compartment.

The deceased was ferried to Gweru Provincial Hospital, where he was pronounced dead upon arrival. His body was examined by a medical doctor. The doctor concluded that the cause of death was hypovolemic shock and a gunshot.

On 10 August 2021, the 2nd accused person was arrested in Bulawayo. The State alleges that on his arrest, the 2nd accused person was found in possession of a 9 x19mm Sarsilmaz pistol whose serial number was T1102-18U01181. It had nine rounds in the magazine, and one was already in the chamber. The recovered pistol was sent for ballistics examination. It matched the samples that were recovered from the murder scene in Lower Gweru, which is the murder that we are concerned with in this trial, hence accused 2's arrest and prosecution for the crime *in casu.*

The accused persons tendered defence outlines.

**ACCUSED ONE'S DEFENCE OUTLINE**

Accused number 1 denies committing this offence, either acting alone or in common purpose with others. He does not know the accused person number 2. He pleaded an *alibi* and challenged the State to prove its case against him beyond a reasonable doubt. Accused number 1 did not object to the production of the post-mortem examination report and the ballistics reports.

He intimated in his defence outline that he would strongly oppose the production of the pistol holster referred to as a "pouch" in the papers *[the court will call it a holster hereinafter]*. His reason for the intended challenge was that, according to him, the recovery of the holster was a result of an unlawful search, a search without a warrant. In the same breath, accused number 1 said that upon his arrest, he was subjected to an unlawful search of his motor vehicle. That search resulted in the recovery of his Samsung mobile phone, but no pistol holster was recovered. He explained that it was only later, and after being forcefully taken to and subsequently detained at the deceased's homestead, that he was told that a pistol holster had been recovered from his vehicle, in his absence.

This aspect of the accused's defence outline was unclear to us and the court sought an explanation from Counsel for accused person number 1 on the following; Was accused person number 1 challenging the legality of the search and not challenging the recovering of the holster in his motor vehicle or he was challenging the recovery of the holster from his motor vehicle as alleged by the State, as a matter of fact. It was Counsel's explanation that accused number 1 was challenging the allegation that he was searched at the scene of his arrest and the holster recovered from his motor vehicle. He further explained that the position of the accused number one is that the holster was brought to him by the police at the homestead of the now deceased.

Accused number 1 went on to give details of his defence to the case, and the details are as follows: that on the date and time in question, he was not physically at the scene of the crime. He was at a totally different place. He had woken up at his home in Gwanda and spent the greater part of the day at the Gwanda Magistrate's Court. He was attending court proceedings in which he was a party. He returned home later and prepared for a trip to Gweru. He is in the business of transporting goods and people. On this day in question, he had been hired by one Prince Moyo for his services from Gwanda to Prince Moyo's rural home in Lower Gweru. The two accused, number 1 and Prince Moyo, were acquaintances because they are both local residents of Gwanda Town. For his services from Gwanda to Rural Lower Gweru, he was paid $70 US in cash. They left Gwanda at around 1600 hours, and by 1722 hours, they were passing the Ntabazinduna Tollgate on the Bulawayo-Harare highway.

They arrived in Lower Gweru around 1930 hours. They left the central business district for Lower Gweru at around 2000 hours. He dropped Prince at some Business Centre

somewhere in Lower Gweru. This was the first time that accused number 1 visited Lower Gweru. When he was on his way back home after 2000 hours, he was stopped and forced out of his motor vehicle, interrogated, insulted and threatened and subsequently detained at the deceased's home by the Police.

He explained that this was a case of being found at the right place at the wrong time. Nothing barred him from being at or near that particular place or area.

He stated that the issue that the Police and/or the State had with him was that he had been found driving a motor vehicle without number plates near the scene of the crime. However, the number plates were later found in the motor vehicle, and, according to him, he had provided a reasonable explanation for his circumstances. He indicated to the court in the defence outline that his motor vehicle was seized by the Police and remains seized, and that the seizure was unlawful.

**ACCUSED TWO'S DEFENCE OUTLINE**

Accused number 2 in his defence outline stated the following.

He is a resident of House Number 71471, Lobengula West, Bulawayo. He did not know the now deceased. He averred to the following events: that on 3 June 2021, which was the day of the commission of this murder, he was in the Republic of South Africa, and he could not be at Lower Gweru at the same time. In South Africa, where he had been a resident since 2000, he was working at Anathi Restaurant until his arrest. He was arrested in August 2021 upon returning to Zimbabwe for a holiday. This had been his practice of coming to Zimbabwe. On the 8th of August 2021, he was drinking beer at Chigumira Shopping Centre at around 1900 hours. His girlfriend phoned and requested that he come to see her in Luveve, and he complied. As he was approaching Luveve, he heard gunshots. Before he could retreat or run away, he was unfortunately shot in the right arm and left palm. He then entered a kombi and returned home; the following day, he was arrested at his residence.

He denied ever owning or possessing a firearm. He had no firearm in his possession either at the time he was shot or at the time of his arrest or at any other time. He did not see or meet the first accused person on the day in question or on any other day. He had never been to

Gweru until his arrest in connection with this case. He denied ever shooting or causing the death of the now deceased, as alleged. He put the State to strict proof of its case against him.

**THE STATE CASE**

At the commencement of the trial, the State tendered a pistol in evidence, which was received as exhibit 1. It is a Sarsilmaz pistol, silver in colour. Its serial number is T1102-18U01181. The pistol holster was also tendered in evidence. It is black in colour and was received as Exhibit 2.

As documentary evidence, the postmortem examination report was tendered EXH C. It suffices to State for the purposes of this judgment that the conclusions of the doctor were that the cause of death of the now deceased Bernard Dube was *1) hypovolemic shock and 2) a gunshot.* Two ballistic reports were tendered in evidence as exhibits D and E. Exhibit D is the ballistic report reference 250-2021, which referenced ZRP Maboleni; the offence was murder. The report in essential parts indicates that on the 11th of June 2021, certain exhibits were received from the Police. The items were as follows: cartridge cases, spent cartridge cases, damaged spent bullets and live cartridges. These exhibits, particularly the 8x19mm spent cartridge cases, were consistent with other exhibits received and tested by the forensic department in relation to a case in Gwanda. It was an armed robbery matter, and another incident that occurred in West Nicholson. Exhibit B, which was a 4x9x19mm spent cartridge case, matched exhibits linked with armed robberies in Gwanda and West Nicholson. Exhibit E 8x9x19mm spent cartridges matched the robberies that had taken place in Filabusi and Gwanda. In simple terms, the exhibits recovered at the deceased's homestead matched the exhibits that were recovered from various armed robbery scenes in Matabeleland South. That report was received as exhibit D. The second ballistic report is referenced as exhibit E, and it has reference number 353-2021. For the purposes of this judgment, Exhibit A tendered by CID Homicide in relation to Luveve was a 9x19mm Sarsilmaz pistol with the serial number T1102-18U01181; in other words, it is Exhibit 1. On examination exhibit 1 matched the spent cartridges which were examined in relation to exhibit D as Ballistic report as being item A. So, in simple terms and for the purposes of this judgment, the examination of the firearm in question established that it was the same firearm or it was one of the firearms that had been used in the murder of the now deceased in Lower Gweru. This firearm, according to the

Sergeant, was allegedly recovered from the accused person number 2 at Luveve during a shootout.

Exhibit A is a warned-and-cautioned statement for the accused person, number 1. This statement was confirmed by a Magistrate, and the response of the accused person number 1 to these charges, in the English version of which reads as follows: *"I do not admit to the charge levelled against me. I did not kill anyone, and I do not know who killed the deceased person".*

Exhibit B is the warned-and-cautioned statement, which was confirmed, and it pertains to the accused person, number 2. His response to the charges reads as follows: *"I do not admit the charges levelled against me that I murdered Bernard Dube. On the 3rd day of June 2021, I was in South Africa".*

As is practice, the parties found it unnecessary to call each and every witness to testify, and they had certain evidence from certain witnesses admitted into the record as common cause between the defence and the State; in so doing, the witnesses were excused from testifying before this court. The witnesses in question were;

1. Lavinia Ncube,
2. Margaret Ncube,
3. Gerald Tavarisva,
7. Silibaziso Zwikwature,
8. Thulani Ndlovu,
10. Norman Machingambi and
11. Doctor Juana Gregori.

Briefly, their evidence was as follows;

1. Lavinia Ncube resides at the homestead of the now deceased. She knew the deceased during his lifetime. The deceased was her husband. On the evening in question, they were sitting in the dining room, eating and watching television. Gerald Tavarisva came into the house and informed the deceased that there was someone requesting to see him. Immediately, a man covering his face with a mask got in just after Gerald Tavarisva. The masked man produced a pistol from his bag and pointed it at the deceased. Lavinia pulled a brick that was under a traditional heater and hit the assailant on his chest, causing him to fall. The assailant went out. The deceased instructed Lavinia to fetch his

firearm from the bedroom she complied. While in the bedroom, she heard some gunshots. On her return to the dining room with the firearm, the deceased told her that he had been shot by assailants. He had been shot in the leg and thigh. After a short moment, the assailants returned. They started shooting towards the house where Lyvina and the deceased were. The assailants fled. Villagers arrived at the homestead and assisted her in taking the now deceased to the hospital.

I must comment that Lyvina's evidence raises an issue regarding the State's choice of charges. One wonders why the State did not charge attempted murder as well in the circumstances. But it is their case that they have the constitutional responsibility and obligation to charge whom they choose, with what they choose.

2. Margaret Ncube resided at the deceased's homestead; the deceased was her brother-in-law. On the day in question, she was seated out in a kitchen hut just outside the house. This is the time that the deceased and his wife were watching television in the house. She heard dogs barking outside the homestead. She instructed Gerald Tavarisva to check at the gate. Gerald came with two male adults. One was wearing reflective trousers. They proceeded to the main house. Gerald Tavarisva got into the house to inform the deceased that there were people outside. One of the assailants followed Gerald into the house. Suddenly, Margaret heard the gunshots. The gunshots were in the house. One of the assailants approached Margaret and ordered her to remain in the kitchen hut. That assailant entered the house, giving Margaret an opportunity to escape through the window and run into the fields behind. From her hiding spot, she realised the assailants fled upon seeing a motor vehicle belonging to Muziyakhula Gwemede. On her return to the house, she found the now deceased groaning and lying on the floor. It is not clear from her evidence summary at what stage the witness saw one of the assailants pointing a firearm at the door and shooting at the house.

3. Gerald Tavarisva is a male juvenile. He resided at the deceased's homestead. The deceased was his uncle. On the evening in question, at around 1930, he was at home when he heard the dogs barking. Margaret instructed him to check at the gate, and he found two men. One of them demanded to see the deceased. One of them wore a mask, and the other did not. The one without a mask was of light complexion and had an

English cut to his hair. The person wearing a mask was of medium build and had a visible beard. These men demanded to see the deceased privately, and one of them withdrew a firearm from his trousers when they got in the house. That is when the deceased's wife struck that assailant with a brick. The rest of his evidence is essentially the same as that of his aunt and Margaret.

I must also comment at this stage that one wonders why the State chose to have the evidence of Gerald Tavarisva admitted under Section 314 of the CP& E instead of having him testify *viva voce* in this court. That will have been necessary because Gerald was the only person, and possibly Margaret and Lyvina, who had had sight of the assailants. But once again, it was the State's choice; they have every right to do what they did.

7. Silibaziso Zwikwature is a member of ZRP CID Gweru. Her evidence pertains to what she found in the course of her professional duties as a police officer.

8. Thulani Ndlovu is another member of the Zimbabwe Republic Police CID Law and Order Gweru, whose evidence again related to what he did in the execution of his professional duties.

10. Machingambi Norman is another ZRP member stationed at CID Bulawayo. His evidence was to the following effect: that on 10 August 2021, he was on duty when he received information about the whereabouts of accused number 2, who had been injured. Accused number 2 had shot dead one of the Police Crack Team members. Machingambi Norman arrested accused number 2 at house number 71471, Lobengula West, Bulawayo. He found accused number 2 nursing gunshot wounds on the left hand and a fractured right arm, and the witness took accused number 2 to Mpilo Hospital.

11. The evidence of Doctor Juana Rodriguez Gregori is already contained in the post-mortem examination report, Exhibit C. There is no need to repeat it.

***VIVA VOCE* EVIDENCE**

The state called three witnesses to testify *viva voce:* Mbongeni Luphahla, Fannuel Nkomo, and Muziyakhula Gwemende. Fannuel Nkomo and Mbongeni Luphahla are police

officers. Luphahla played a role in the arrest of accused number 1, and Nkomo played a role in the identification of accused number 2.

Mbongeni Luphahla testified that he was a member of the Zimbabwe Republic Police and, at the material time, was based at Malobeni. He got a call on the 3rd of June 2021 that robbers had shot the now deceased at his home. And the 3rd State witness testified Gwemende had come to the station. They were assigned to attend to the scene, and Gwemende provided them with transport, as the police did not have transport at the material time. About a kilometre from the deceased's homestead, they met the accused person number 1. Accused person number 1 was driving an Isuzu motor vehicle without number plates in the front and at the back. They stopped him, asked him where he was from. Luphahla says this was influenced by the fact that the deceased's relatives, who were in Gwemende's motor vehicle, had indicated that the Isuzu motor vehicle driven by the accused person number 1 was not known in the area. Accused number 1 said he had dropped one Prince Moyo at home. Prince Moyo had hired him from Gwanda. They asked him to take them to Prince Moyo's homestead. Accused number 1's response was a chair in the area narration and said that he had dropped Prince Moyo at the shops, which raised a suspicion in the Police. They asked to search, but the search found nothing, then they asked accused number 1 why his car had no number plates. Accused number 1's response was that he had dropped the number plates, and they had gotten lost. They searched the motor vehicle, which led to the recovery of the number plates from under a seat. They confronted the accused person 1 with that discovery, but why did you say you had lost them and that we are now finding them under the seat? Accused number 1 did not have an answer. They continued with the search, which led to the recovery of a black pistol holster, exhibit 2, from a compartment in the motor vehicle that was being driven by accused 1. Asked about that, you said it had been left by Prince Moyo. The occupants of the motor vehicle further stated that there was no Prince Moyo in that area. They proceeded to arrest accused number 1. It was Luphahla's evidence that they had tried to locate Prince Moyo by asking local villagers, and that Prince Moyo was not known in that area. It was Luphahla's evidence under cross-examination that they had met accused number 1 between 2030 and 2100hours and that he bases that estimation on the fact that when they signed out to go and attend to the scene, it was exactly 2030 hours, and it would take them about twenty minutes to be where they met accused number 1. It was his evidence that he personally searched the car, and that the accused, person number 1, was present during the search. Under cross-examination, he indicated that they had

also recovered a phone in the motor vehicle. When confronted with the accused person's defence that he denies having been found in possession of a holster in the car, the witness said the accused person is not telling the truth. He also described it as a blunted lie, the allegation that the accused, person number 1, was searched by villagers rather than by the police. A question was put to Luphahla that no search had been conducted; in fact, the holster had just been brought by the Police to accused 1, and accused 1 was told that it had been in the car, as indicated. He described that as a blatant lie. He denied that the search took place at the deceased's homestead.

The next State witness was one Muziyakhula Gwemende. Gwemende is related to the deceased in that the deceased was his brother-in-law, as the deceased was married to Gwemende's sister. Their homesteads were near each other. On the evening in question, he had some gunshots emanating from the deceased's home. This caused him to drive to the shops, where he picked up some villagers, and they drove to the police. He gave transport to the police. This is when they met the accused person number 1 on the way, about a kilometre from the deceased's homestead, and they stopped accused number 1. His evidence thereafter basically substantially reflects that of Luphahla.

Then the State called Fannuel Nkomo, the evidence of Fannuel Nkomo relates to accused number 2. Fannuel is a member of the Zimbabwe Republic Police with 25 years in service. He told the court that on the day, which is the 9th of August 2021, he was assigned to provide backup services to a crack team that had been sent to a house in Luveve upon receiving Police Intelligence that there was going to be an armed robbery at house number 116, Luveve. He drove to the scene and parked along an unnamed road near the house in question. He heard gunshots emanating from the house in question. He then saw accused number 2 running from that house, carrying a silver pistol. He crossed the road and fell. He rose, removed a navy blue jacket, and ran away, leaving behind a silver pistol. He waited for the shots to die down. He went to where accused number 2 had fallen and recovered a blood-stained pistol. He reserved the scene. Members of the scene of crime unit attended to the scene and collected DNA samples. He also picked a navy blue jacket that accused number 2 had dropped. He handed the same to the Investigating Officer. All this happened after 7 pm but before 8 pm. It was already dark, but his headlights were on. It was his evidence that he saw clearly. After the accused number 2 had been arrested, he went to Mpilo Hospital, where he identified him as the

individual that he had seen run from house 116, Luveve, and drop a silver pistol. His evidence was that he had not seen accused number 2 before the day that he says he saw him drop a pistol. He had observed accused number 2 for about two minutes, from about 20 metres. The witness was challenged by Counsel to say he was lying that accused number 2 dropped a pistol because at that time, accused number 2 had been shot badly on his arms and hands, he could not hold a pistol, and his response was that he was telling what he saw. The evidence of Nkomo was wrapped up with his identification of Exhibit 1 as the pistol he had seen accused number 2 drop, which he had picked up and which was taken by Scene of Crime Unit Members.

We will break for lunch at this moment and reconvene at 1400hours to continue the delivery of this judgment.

Court adjourns.

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**BY COURT**

Q. Mr Ndlovu, any developments regarding the Counsel for accused 1?

A. I have not received anything. He has not phoned me.

**BY COURT**

We will proceed with the judgment.

**DELIVERING OF JUDGEMENT CONTINUES**

At the close of the State case, the defence for the accused person number 1 applied for his discharge. We dismissed that application; we promised to give the reason for our decision in the main judgment. These are the brief reasons; Section 198 Subsection (3) of the Criminal Procedure and Evidence Act Chapter 9:07 provides as follows 'if at the close of the case for the prosecution the court considers that there is no evidence that the accused committed the offence charged in the indictment summon or charge or any other offence of which he might be convicted there on it shall retain a verdict of not guilty'. So, to operationalise that statutory provision, the State must have closed its case. The Presiding Officer, that is, the Judge or the Magistrate, must consider that or must be of the opinion that there is no evidence that the accused committed the offence charged or any other offence. When the individual presiding officer is of the opinion that there is no evidence against the accused person, the court is therefore bound to discharge the accused person. It follows, therefore, that if the court considers

otherwise, then the accused person must not be discharged. We were of the view that there was evidence that could lead to the conviction of the accused person, and that was the reason we dismissed the application for discharge. From the completeness of the judgment, what is it that at the close of the State case caused the court to consider that there was prima facie evidence upon which the accused person could be convicted? It was a common cause that accused number 1 was arrested in the vicinity of the scene of the crime. It was a common cause, and if it was not a common cause to the defence, at least it was clear, and it was prosecuted by the State, so that the cause of his arrest was that he was in circumstances that raised suspicion. He was not known at the place. It was common cause that he was there within the time that the offence had been committed. Highly suspicious evidence was allegedly recovered from him. There was no consensus on how or where the evidence had been recovered. There was no consensus regarding the explanation that the accused gave when asked about the number plates and exhibit 2, the pistol holster. The circumstances of the offence were clear that accused number 1 was being charged on circumstantial evidence. And with the controversies surrounding the recovery of the exhibit and the arrest of the accused person number 1, the only justiciable course was to allow accused number 1 to answer under oath to the allegations made by the State witnesses. It was only then that the court would be able to decide what was proven before it and see whether that evidence could sustain a conviction against the accused, number 1. It cannot be said that something is proven when there is controversy over its facts. Those were the reasons why we dismissed the application.

The accused persons testified in their respective defences and called no witnesses.

**Accused number 1's defence;**

He recalled his defence outline, which he abided by and adopted as part of his evidence in chief. As already indicated, part of the evidence regarding the arrest of accused person number 1 is common cause. We go to the critical, relevant, and controverted aspect of that arrest. The accused testified that he is a miner in Gwanda and that he stays in Gwanda Town. That on the day in question, he had travelled from Gwanda to Lower Gweru. He was bringing Prince Moyo to his homestead. It was his evidence that he dropped Prince Moyo near a river. The cause of that drop-off was that the car could not cross the river. And the homestead of Prince Moyo was across the river. On his way back to Gweru en route to Gwanda, he was stopped by the police. They stopped his motor vehicle. They asked him why his motor vehicle did not have number plates affixed. He told them that the number plates had gotten off on the dusty road and that he

had no spanner to re-attach them. The police then asked to search his motor vehicle. He asked them for the reason to search his motor vehicle, and they told him that someone had been shot around. They searched his motor vehicle and took a phone from it. He further explained that when the Police asked him where he had dropped Prince Moyo, he had told them that he had dropped him past St Faith Business Centre. The police told him to get into the kombi that marked his arrest. Then his motor vehicle was driven by somebody to the homestead of the deceased. He said that at the now-deceased's homestead, they found that the deceased had been ferried to Gweru Hospital. All along, his car had been driven behind the kombi the police had told him to get into. After about forty minutes of their arrival at the homestead, his car arrived. It was parked behind the kombi, and he observed the police officers searching the motor vehicle. He also observed the police officers picking up some items in the yard. That exercise took about two hours. He was then approached by an individual who was not in a police uniform. They brought to his attention the items that they had picked in the yard, together with Exhibit 2, the holster. The uniformed individual then said to him these are the things that you used to kill the deceased referring to those items at the homestead. And that individual was candid enough and asked him whether the person he had been carrying, Prince Moyo, had not put anything in the accused's car. He gave the answer that Prince Moyo had not left anything. It turned out that the individual who was engaging accused number 1 was Officer Luphahla. After that conversation, he was driven to the police station. He was adamant that Exhibit 2 was never recovered from his motor vehicle. He was adamant that he had told the police that he had arrived in Lower Gweru at around 21:00 hours. Accused number 1 further testified that some people who were at the homestead of the now deceased kept on saying his motor vehicle had been seen at Sugar Farm in the afternoon. And his response was that he was in Gwanda until 3 pm, and he then showed them a tollgate receipt slip from the Ntabazinduna tollgate, which was tendered as Exhibit F.

Accused number 1 said the police told him there was Ntabiso Ncube and asked him if he was the one he was with; he said he was not with Ntabiso. And he said maybe he can identify Ntabiso Ncube if they showed him Ntabiso Ncube. It is noted that the name Ntabiso Ncube is similar to that of the accused person number 2. He said all this took place after the police told him they had arrested accused number 2, and he told them he did not know Ntabiso Ncube and had not been hired by Ntabiso Ncube but by Prince Moyo. Needless to say, accused number 1 repeated that he does not know accused number 2. It was his evidence that the police brought

two individuals answering to the name Prince Moyo to him, and those individuals were not the Prince Moyo he was talking about. He had known Prince Moyo from 2016 to 2017; at the material time, he had known Prince Moyo for about five years. Prince Moyo was not a stranger to him; they had cordial relations, as he would transport him during his gold-surveying activities. Under cross examination accused person number 1 when confronted with the issue of where exactly he had dropped Prince Moyo with the Public Prosecutor drawing his attention to his defence outline that he had said he dropped Prince Moyo at some Business Centre and now he was talking about dropping him at St Faith and now he was talking about dropping him across the river his answer was that he had forgotten that the Business Centre is St Faith Business Centre. Pressed…by the State Counsel, accused number 1's response was that he had not said that he left Prince Moyo at the shops, but he had said he left Prince Moyo near the shops. But he acknowledged that in his previous answers, he had not indicated that he left him by the stream or river. Accused number 1 appreciated that Prince Moyo could be a saviour in this. It was his evidence that he was admitted to bail in 2021, but he said he never met Prince Moyo again; he had heard that he is now mining Giyane. And that he accused number 1 was used to communicate with CID officers, and he was informed that Prince Moyo was now back at Vova, where he used to mine. During the cross-examination of the accused person number 1, exhibit 1 was made to fit into exhibit 2, the holster. Exhibit 1 fitted perfectly into Exhibit 2.

**Then we turn to the evidence of the accused person 2.**

He recalled his defence outline, adopted it, abided by it, and made it part of the evidence. His evidence was short. He disputed that he dropped Exhibit 1 or anything similar to it. This was so because he says he had already been injured. He denied having a navy blue jacket; he said he had a blue work suit. He denied that the police recovered that jacket, regardless of its colour, near the scene of the shooting in Luveve. He explained that what had actually happened was that after he was shot, he fell into a galley or a stream in Luveve. He lost consciousness and spent the night out there, only to be picked up by kombi drivers in the early hours of the morning after he was awoken by the cold. They asked him where he stayed, and he told them that he stayed at Lobengula West. They took him and dropped him at Lobengula West. When he got there, his wife realised that he had overbled, which caused his wife to cut that jacket, which was now sticking to his body, and throw the pieces into a dustbin. It was at that time that the Police arrived and arrested him. He does not know accused number 1. He only met him in prison. He disputed every bit of Fanuel Nkomo's evidence. And as

already indicated, he knows nothing about Exhibit 1. When accused number 2 testified, he showed the court a bandaged right lower arm and his left hand. The left hand has two fingers that are missing, that is, the second finger and the thumb and the middle finger is injured.

The two counsel who complied with the court's direction that they file written submissions did so and picked the legal position correctly that the State is prosecuting two accused persons on the basis and belief that they have circumstantial evidence linking them to the commission of the death of Bernard Dube. There is no argument that there is no direct evidence against either of the accused persons. But what is circumstantial evidence? We go back to 1939 in the case of R vs Blue 1939 AD 188, and on page 202, the court had the following to say regarding circumstantial evidence. In reasoning by inference, there are two cardinal rules of logic which the court cannot ignore;

1) The inference sought to be drawn must be consistent with all the proven facts; if it is not, the inference cannot be drawn.
2) The proved facts should be such that they exclude every reasonable inference from them save the one sought to be drawn. If they do not exclude other reasonable inferences, then there must be doubt whether the inference sought to be drawn is reasonable as well.

It admits to no argument, therefore, as was held in State vs Marire Nhema HB87/21, that the first enquiry is simply to answer the question: what are the proven facts? It must also be pointed out at this stage that reliance on circumstantial evidence is a dicey reliance by the State. It is equally dicey when it comes to convicting an accused person. The court should not lightly find that the offence has been proven on circumstantial evidence without exercising caution and following the guidelines that have stood the test of time since 1939. To answer the question as to what the proven facts are in any given Criminal trial? The proven facts will be the State's allegations that are not refuted by the defence. Proven facts are those facts that are common cause between the State and the Defence. Proven facts are the findings of the court after analysing the controverted factual issues between the State and the Defence. That exercise must be embarked upon by the court before the question of drawing inferences even arises.
I start with the accused person number 1.

- Common cause, he was found within a kilometre of the scene of the crime.
- Common cause: the crime had just been committed within two hours.

- Common cause he was found driving a motor vehicle without number plates in the front and the back.
- Common cause, he said he was coming from Gwanda.
- said he was bringing Prince from Gwanda to Lower Gweru.
- Common cause he could not take the Police to Prince.
- Common cause he was asked about the number plates.

The State alleges that initially, he said the number plates had fallen off.
It is common cause that the number plates were found in the car.
It was not controverted by accused number 1 that, when he was asked why the number plates were in the car, even though he had said they had fallen off, he could not answer.

It was only in his evidence that he said he told them the number plates had come loose and that he did not have a spanner to refit them. That factual dispute must be resolved by this court, and this is the resolution of that factual dispute by this court. We find it proven that when he was asked where the number plates were, he said they had fallen off. We find it proven that when the number plates were found in the car, and he was asked why he had initially said they had fallen off, he failed to answer. We dismiss the accused's explanation that he told the police the number plates had come loose and that he did not have a spanner to refit them. The reasons for our decisions are as follows;
It is highly unlikely that number plates on a motor vehicle will become loose at the same time at the front and the back. Assuming they do or did, it is highly unlikely that the number plates on a motor vehicle will be loose while it is being driven, and the driver gets to see them before they drop while he is driving. Assuming that happened, the accused person number 1 will then have the right from the beginning to tell that. It is not the driving of the motor vehicle without number plates or the locating of the number plates in the car that aroused the police's suspicion and led to the arrest of the accused person number 1. The number plate issue only attracted the attention of the police, causing them to stop accused number 1's motor vehicle. So, had the accused person given the police the innocent explanation that he was giving in his defence outline, surely the police were highly unlikely to have questioned the witnesses for the State, who were highly unlikely to have come to court and alleged as they did on the questioning of the number plates.
Because the number plate issue would have been reasonably explained and proven. And the explanation will have been fully given. It will not have been given to the courts. So we find it proven that the car was without number plates. Accused number 1 was asked where the number

plates were. He said they had dropped off a dusty road, and they were found in the motor vehicle. He failed to explain their discovery in the motor vehicle. We turn to the issue surrounding Prince, where was Prince dropped? Accused person number 1 will be the first one to admit that he gave quite a number of drop-off points at any given time. The witnesses for the State said he told them that he had brought Prince. Then, when they challenged him to take them to Prince's homestead, he changed his mind and said he had dropped them at the shops. In court and under oath, he said he did not say at the shops, but near the shops. He was not done, he went on to say he dropped him by the river while his homestead is across the river. He who tells the truth does not tell various reasons. He who lies when will tell one version. We therefore find it proven that the accused person 1 failed to give an honest and clear explanation as to where he had dropped Prince. That finding leads us to the following two inferences. That either Prince was never there or Prince was there on a mission known by accused person number 1, which accused person number 1 finds very uncomfortable to disclose. And we go further, and the reasonable inference on the person of Prince is that there was never Prince. Why do we say so? Accused number 1 says he has known Prince for many years. Not only has he known Prince for many years, but they also live together in Gwanda. Prince's home is in Gwanda town; the accused's home is in Gwanda town. Surely, if there was Prince and Prince's phone had proven difficult to go through, or he had proven difficult to locate, the accused person ought to have gone to Prince's house in Gwanda and looked for him there. Or at least tell the police to go to that house, or go to this Vova, where he is said to be mining now. It must not be forgotten that the accused, number 1, has been on bail for almost three years. It must not be forgotten that the accused appreciates the seriousness of the charges he faces. It will not be an unreasonable inference therefore to say only he who has heard his mind depart him will not look for the person who can save him from the messy that he finds himself in. and it should not be forgotten in these circumstances that according to accused person number 1 the police brought two individuals who are called Prince and he is the one who said neither of them was the Prince that he was talking about. We therefore find it a proven fact that the explanation regarding Prince by accused number 1 is, beyond a reasonable doubt, a lie.

**We turn to exhibit number 2.**

The pistol holster was controversial as to where it was recovered. The State witnesses were steadfast in their assertion that it was recovered from the glove compartment of the motor vehicle driven by the accused person number 1. The accused person, with respect to where

Prince was dropped, was all over the show as to how Exhibit 2 was recovered. And it should not be forgotten that the accused, number 1, is represented by Counsel. In the defence outline, the challenge was that Exhibit 2 was recovered as a result of an unlawful search. That allegation admits it was found where it is said it was found, but it was found through illegal means. Within the same paragraph, the tune changed to say it was not found there. The holster was brought to the accused person at the homestead, not at the place where the car was stopped. When he testifies, he then says the holster was picked up together with spent cartridges, which was never the allegation in the defence outline. That was never put to the State witnesses. If the holster had been recovered at the homestead, a point should have been made in the defence outline that it was recovered at the homestead. It will be attractive to the police to say we recovered it in the glove compartment while the car was parked at the homestead. Let's take it from the time of the statement, at least there: why would the police relocate the scene of the holster's recovery when it is immaterial to the prosecution of the accused person? What is material is the location where it was found in the motor vehicle. The attraction had nothing to do with the holster being recovered one kilometre away from the scene. What was important and attractive for them, if they were lying, was to say they found it in the motor vehicle; and if the motor vehicle by then was at the homestead, they would simply have said at the homestead, just as they could have lied. If we are to go by the accused person's evidence, why will the Police link spent cartridges, pick a holster, come and say to the accused, "You know what this holster was in your car? Did the person you were carrying leave it in your car? So first, the Police pick up the holster at the homestead and lie to the accused, saying they found it in his car. But at the same time, they tried to give him an opportunity to escape and said, "Did the person you were carrying this Prince not leave it in your car?" And the accused, if he is innocent, does not say it was possible that it was left by the Prince. It's not uncommon for an item to be found in a car, and the driver says it might have been left by a passenger if he doesn't know it. But it was by his own word of mouth that he answered and told the police officer, Luphahla, that no Prince left anything in my car. So whatever was in the car and was not left by Prince, and was strange, was not strange; it was known to the accused person. And why would the police, after all that, come to court and lie that the holster was recovered 1km away from the scene? Why will the police drag in influence Gwemende to also say the holster was recovered where the accused person's car was stopped?

We have said that the State witnesses were very steadfast; they had no reason to lie in that respect. We found them to have been credible in that regard, and we therefore find it proven

that the holster exhibit 2 was found in the glove compartment of the motor vehicle that was driven by accused person number 1, a kilometre away from the scene of the crime, within two hours of the occurrence of the crime, and that motor vehicle had no number plates affixed.

We turn to accused number 2. Evidence of identification is an unruly horse. It is so for several reasons. A witness might be genuinely mistaken. We go back to *State vs Mthetho* 1972 (3) South Africa Law Reports page 766. That authority has stood the test of time. That authority has been followed by our courts for a long time. That authority has been followed in other jurisdictions that practised the Roman-Dutch Law. I will just pick a brief exercise, "because of the salability of human observation, evidence of identification is approached by the courts with some caution. It is not enough for the identifying witness to be honest; the reliability of his observation must also be tested". It's not enough for a witness to say I am telling the truth. It's not enough for a witness to confine us to what he says. In exercising caution, the court must look at the evidence of the witness yonder.

The State evidence through Fannuel Nkomo is that he saw accused number 2 run from house number 116, Luveve. Saw him for about two minutes; the lights were on; 20 meters away, he dropped what turned out to be Exhibit 1. He took off a navy blue jacket and fled. Viewed alone, that evidence would not be sufficient to say he positively identified accused number 2. He did not know the accused person before. The time of seeing him was very brief; the distance, given the circumstances and the fact that it was at night, was long. The circumstances were terrifying; there was a shoot-out. It is his evidence that the members of the Crack Team were armed with an AK-47. It was in a built-up town. In his own evidence, he waited until the shoot-out died down for him to get out. He was therefore in circumstances that could, in all probability, compromise his observations. When accused number 2 says I had a black jacket and the witness says it was a navy blue jacket, one can safely say that, at the time Fannuel made the observation, he could not easily distinguish between black and navy blue; after all, it was at night. But we don't end there. We look at the totality of the evidence as we are obliged to do. In his warned and cautioned statement tendered into evidence as exhibit B, accused number 2 had the following to say: he was asked have you any wounds or injuries? He said yes. Asked to describe the wounds or injuries in detail, accused person number 2 had the following to say: "I was shot by police on the arm during arrest. I have a broken arm" What does accused number 2 say in his defence outline? He had the following to say: he was called by his girlfriend. When he approached the girlfriend's place, he heard gunshots before he could do anything, and he was shot in the right arm and left palm. He then got into a kombi and went home, and the following

day, he was arrested at his residence. What does the accused person number 2 say in his evidence in chief? He was shot, badly injured, fell into a galley and lost consciousness. Spent the whole night there, picked up by good Samaritans the following morning, taken to his house, and arrested as soon as he got to his house. First of all, we have an accused person who has self-contradicted. Did he jump into a kombi and go home when he was shot and got arrested the following day, or did he fall into a ditch and lose consciousness, taken by good Samaritans the following day and then taken home and then arrested? Let us, for a moment, say there was a genuine mistyping of the defence outline. Accused number 2 is represented by Counsel, clearly Counsel would have picked the mistyping and gotten it corrected but maybe that again was lost to Counsel. What are the probabilities of the explanation by the accused person? Who goes home when he has been badly shot, like the accused person number 2 was? Who takes a badly shot person like the accused person was, home instead of taking them to a hospital? In his own words, he had bled profusely, so the conduct of the accused person, even going by his own explanation, and the conduct of the kombi drivers, we are aware they are not before us, and neither did they testify, is it probable? If we are to go by the defence outline, he was shot at and jumped into a kombi. Yes, it does happen that drivers are out looking for girlfriends and not carrying passengers, but generally, they do carry people. The question still remains, who jumps into a kombi badly injured, as accused number 2 was and is taken home or goes home? That explanation is improbable, but we don't end there. Accused number 2 says he was to see a girlfriend, but he was shot in a crossfire. This is an innocent man who is pursuing his passion. He falls victim to a shoot-out, he knows nothing about this shoot-out, and he runs away; he doesn't seek assistance. There is a car flashing its lights in front of him, but he doesn't say here I am, I have been injured during this shoot-out, please help me. He runs away. Victims don't run away unless they run away from something criminal. In case we are wrong, and we believe we are not. How did accused number 2 know that he was shot at by the Police if he was innocently there and bullets were flying all over? How will you tell that I was shot by a police bullet? Maybe he could have done that the following day, maybe his mind was still in disarray, but he did that in February 2022, six months or so after his arrest. This tells us that he knew he was shot at by the police, which is why he ran away instead of seeking help. That is why, instead of the wife taking him to the hospital or cutting the jacket and putting it just where it can be picked decided to throw it into a dustbin. Because he was shot at by the Police and he knows it was by the Police. His presence there was not innocent. That fed to his running away, that fed to his not looking for help, that fed to the jacket being thrown into a bin, "as per his

explanation". This tells us that he was not going there to see his small house and what Fannuel Nkomo, with 25 years of policing experience, gained by saying the accused took off his jacket. When he also says a firearm had been dropped. The police are not interested in a jacket; they are interested in a firearm. Even if we are to believe, even if we are to be convinced that the Police do lie, it would be too much of a leap of logic to say they will lie stupidly. Lie in a manner that does not benefit the State, as that case is improbable. We now know, and the defence has admitted, that exhibit 1 was connected to various scenes of crime in Matebeleland South and to the matter we seized with. The explanation by accused number 2 of how he was injured, which led to his arrest, is, beyond a reasonable doubt, false. What could have passed as weak identification evidence of Fannuel Nkomo has been strengthened by the other evidence around that occasion of the identification. So, in respect of the accused person number 2, we find it proven that he was shot at a house in Luveve during a robbery. He dropped exhibit 1, exhibit 1 was taken for ballistic examination and matched the spent cartridges that were recovered at the scene of the murder of Bernard Dube. We have addressed the first obligation: stating the proven facts. Can it therefore be said that from the proven facts, the only reasonable inference is the one that is sought by the State?

Is there any other inference that can be drawn from the proven facts, and if there are, are the other inferences that can be drawn reasonable? The man from Gwanda is found within a kilometre of a murder scene. He is driving a car without number plates. He is asked about the number plates he lies. His car is searched, and a pistol holster is found in his car. He is asked about the reasons for his being in that area, and he offers an explanation that he fails to substantiate. He offers an explanation that the police try to prove, yet he still fails. The person he says he brought him to that area is supposedly a resident of Gwanda, where he is also a resident and knows his house. He is granted bail for over two years, but he still can't locate the person he drove to Lower Gweru. The deceased met his death through a shooting. A firearm was recovered, and that firearm fits into the holster recovered in the car of the accused person. A wheel from a Toyota will fit into any other Toyota. So the fitting of exhibit 1 into exhibit 2 standing alone may not be sufficient, but in this case, the facts of the matter are that exhibit 1 was part of the murder weapon and exhibit 2, in which it fits, was found in the glove compartment of the accused person within two hours and within a kilometer of the commission of the murder and the murder scene in respect. Is there any other inference that can be drawn from these facts other than that the accused person number 1 was part of the people who murdered the now deceased? We have no evidence directly linking him. We have no visual

evidence of somebody saying, "I saw you. What does Section 196A of the Criminal Law Codification and Reform Act say? It deals with those who associate with criminal offences. It addresses the question of co-perpetrators. It codified the common purpose doctrine. The other inference we find in our wisdom is that it was merely a coincidence that these facts turned out to be what we have just explained. Is the coincidence reasonable, or is the explanation of the coincidence reasonable in the circumstances? It is not. So, in our view, our finding is that the only reasonable inference from the proven facts in respect of the accused person number 1 is that he was somehow involved in the murder of the now deceased.

**We turn to the accused person number 2.**

We have what we consider proven facts. He was involved in a shootout with the police. The police had received intelligence that a robbery was going to take place on that day at that place. They laid an ambush and had a shoot-out. A firearm was dropped by the accused person number 2, and he ran away from the scene. The firearm was connected to many other scenes of serious crimes, and most importantly, it was linked to the murder of Bernard Dube in Lower Gweru. What could be another inference from the proven facts? Yes, there is one accused person, number 2, who might have come across exhibit 1 long after it had been used by somebody else in Lower Gweru. But is that inference reasonable in the circumstances? It is not the business of the court to provide defences for accused persons. On the proven facts, the accused person number 2 knew very well that Exhibit 1 was involved in, or used in, many scenes of serious crimes. He did not innocently associate with Exhibit 1. His running away from the police and from the scene tells a lot. Exhibit 1: In the absence of an explanation, an innocent explanation by accused number 2 cannot be said to have belonged to somebody else and cannot be said to be reasonable, so that accused number 2 came into contact with it at any other time after the commission of the murder of Bernard Dube. The only reasonable inference to draw from the proven facts is that the accused person number 2 was involved in the murder of Bernard Dube in Lower Gweru on the 3rd of June 2021. And for the avoidance of doubt and to complete this juncture, it must be noted that, in his warned and cautioned statement, the accused person number 1 does not give this innocent explanation of being hired from Gwanda. In his evidence, he departed from involvement in the transportation business of people and goods and became a miner. For accused 2, notwithstanding that he protested his being in South Africa in June 2021, he brought no evidence on the balance of probabilities to support his claim that he was out of the country.

The totality of the evidence, therefore, before us establishes that the two accused persons were involved in the murder of the now deceased. What was the intention? Shooting at a man directly at short range, shooting or spraying the house of a man with bullets, and the man dies, can never be taken to have been a murder committed on the facts of an accused engaging in some conduct and appreciating that death might result and proceeding recklessly in this conduct. The visit to the scene was premeditated. The modus operandi of entry into the homestead of the deceased was premeditated, deceitful, and executed, and the deceased was shot. That can only be a murder with actual intent.

**VERDICT:** It is for those reasons that we find that the state has proven its case against each one of the accused persons, and each one of them, that is, ***Perfect Nyathi and Ntabiso Ncube, is Found Guilty as Charged.***

**NDLOVU J.**